



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 02, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20439
(SECOND REVISION)

EXPIRATION DATE: 2026-07-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: TOTAL Feuerschutz GmbH
Ladenburg, Germany

US AGENT: Johnson Controls
Marinette, WI
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of fire extinguishers, which do not have the “MEETS DOT REQUIREMENTS” marking on them. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.309(c)(2) in that the cylinder is greater than 900 ml and contains liquefied compressed gas and § 173.309(c)(4) in that the cylinder was not tested to at least three times the charged pressure, and that the “MEETS DOT REQUIREMENTS” marking is not on the cylinder.
5. BASIS: This special permit is based on the application of TOTAL Feuerschutz GmbH dated July 25, 2022, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Fire extinguishers <i>containing compressed or liquefied gas</i>	2.2	UN1044	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are existing non-DOT specification cylinders manufactured before May 2016 and authorized as fire extinguishers. The cylinders must be designed and manufactured in accordance with the TOTAL Feuerschutz GmbH specifications and drawing number 0076-U02-C4 on file with the Office of Hazardous Materials Safety.

(1) Each prescribed cylinder must have been pressure tested to a test pressure of at least 30 bar.

(2) Two cylinders from each batch of 300 cylinders must have been pressure tested to a burst pressure of at least 100 bar.

b. OPERATIONAL CONTROLS:

(1) Each fire extinguisher authorized under this special permit must be marked "DOT-SP 20439".

A person using the fire extinguisher in accordance with § 173.22a(b) may apply this marking if authorized by the special permit holder.

(2) The max filling pressure is 12 bar at 21 °C.

(3) No new manufacture of fire extinguishers is authorized under this special permit.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

- b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.
 - c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.
 - e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, passenger-carrying aircraft, and cargo aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

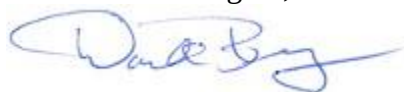
No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: kah/NICKS